CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FOURTH SECTION

DECISION

Application no. 26049/94, 26050/94, 26051/94, 26052/94, 26053/94, 26054/94, 26055/95 and 26056/94
by Roger Neil GEFFEN, John DRURY, John Samuel MORTLOCK, Alexander Lawrie BEGG, Catherine MULLER, Catherine NI BHEAN, Daniel John TWYCROSS and Peter STYLES

against the United Kingdom

The European Court of Human Rights (Fourth Section) sitting on 18 May 1999 as a Chamber composed of

Mr M. Pellonpää, *President*,
Sir Nicolas Bratza,
Mr G. Ress,
Mr I. Cabral Barreto,
Mr V. Butkevych,
Mrs N. Vajić,
Mr J. Hedigan, *Judges*,

with Mr V. Berger, *Section Registrar*;

Having regard to Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the applications introduced on 16 September 1994 by Roger Neil GEFFEN, John DRURY, John Samuel MORTLOCK, Alexander Lawrie BEGG, Catherine MULLER, Catherine NI BHEAN, Daniel John TWYCROSS and Peter STYLES, respectively against the United Kingdom and registered on 20 December 1994 under files nos. 26049/94, 26050/94, 26051/94, 26052/94, 26053/94, 26054/94, 26055/95 and 26056/94, respectively;

Having regard to the reports provided for in Rule 49 of the Rules of Court;

Having regard to the Commission's decision of 16 October 1996 to join the above cases and to communicate them to the respondent Government without putting questions on the admissibility and merits;

Having regard to the Commission's decision of 28 May 1997 to request the parties to submit written observations;

Having regard to the observations submitted by the respondent Government on 28 August 1997 and supplemented on 28 September 1997;

Having regard to the Commission's decision of 9 December 1997 to adjourn the cases pending the Court's judgment in the case of Steel, Lush and others v. the United Kingdom;

Having regard to the observations in reply submitted by the applicants' representative on 12 January 1999 and the letter from the applicants' representative of 30 March 1999,

Having deliberated;

Decides as follows:

THE FACTS

The applicants are United Kingdom nationals. They are represented before the Court by Mr P. Leach of Liberty, London.

The facts of the case, as submitted by the parties, may be summarised as follows.

In March 1994 the first, second and third applicants, at different times, took part in peaceful demonstrations against the construction of the M11 motorway link road in London. The applicants were arrested and detained but then released on the same day without charge.

In July 1994 the fourth, fifth, sixth, seventh and eighth applicants were arrested in Yorkshire during a peaceful demonstration against the policies of the World Bank. They were released on the same day without charge.

COMPLAINTS

The applicants claim that their detention amounted to serious interference with their freedom of expression, peaceful assembly and association. They invoke Articles 5, 6, 10, 11 and 13 of the Convention.

PROCEEDINGS BEFORE THE CONVENTION INSTITUTIONS

The applications were introduced before the European Commission of Human Rights on 16 September 1994 and registered on 20 December 1994.

On 16 October 1996 the Commission decided to communicate the applications to the respondent Government without requesting they submit written observations, to join the cases and to adjourn further examination.

On 28 May 1997 the Commission decided to invite the Government to submit observations in the light of its Article 31 Report in Application no. 24838/94, Steel, Lush and others v. the United Kingdom.

The Government's written observations were submitted on 28 August 1997, after an extension of the time-limit fixed for this purpose, and supplemented on 28 September 1997.

On 9 December 1997 the Commission decided to adjourn the cases until the Court had given its judgment in the case of Steel and others v. the United Kingdom. The Court gave judgment in that case on 23 September 1998 (to be published in Reports-1998).

On 1 November 1998, by operation of Article 5 § 2 of Protocol No. 11 to the Convention, the case fell to be examined by the Court in accordance with the provisions of that Protocol.

The applicants' representative's observations were submitted on 12 January 1999.

In a letter of 30 March 1999 the applicants' representative informed the Court that they wished to withdraw their applications.

THE LAW

Having regard to the applicants' letter of 30 March 1999, as well as to Article 37 § 1 (a) of the Convention, the Court notes that the applicants do not intend to pursue the petitions. Furthermore, in accordance with Article 37 § 1 *in fine,* the Court finds no special circumstances regarding respect for human rights as defined in the Convention which require the continuation of the examination of the applications.

For these reasons, the Court, unanimously,

DECIDES TO STRIKE THE APPLICATIONS OUT OF ITS LIST OF CASES.

Vincent Berger
Registrar

Matti Pellonp
President